

police officer. Mr. Chief Justice Warren, speaking for the Court, noted that the police officers

“did not defend on the theory that they believed in good faith that it was constitutional to arrest the ministers solely for using the [‘white only’] waiting room. Rather, they claimed and attempted to prove that . . . [they arrested them] solely for the purpose of preventing violence. They testified, in contradiction to the ministers, that a crowd gathered and that imminent violence was likely. If the jury believed the testimony of the officers and disbelieved that of the ministers, and if the jury found that the officers reasonably believed in good faith that the arrest was constitutional, then a verdict for the officers would follow even though the arrest was in fact [without probable cause and] unconstitutional.” *Id.*, at 557.

The Court noted that the “common law has never granted police officers an absolute and unqualified immunity,” *id.*, at 555, but that “the prevailing view in this country [is that] a peace officer who arrests someone with probable cause is not liable for false arrest simply because the innocence of the suspect is later proved,” *ibid.*; the Court went on to observe that a “policeman’s lot is not so unhappy that he must choose between being charged with dereliction of duty if he does not arrest when he has probable cause, and being mulcted in damages if he does.” *Ibid.* The Court then held that

“the defense of good faith and probable cause, which the Court of Appeals found available to the officers in the common-law action for false arrest and imprisonment, is also available to them in the action under § 1983.” *Id.*, at 557.

When a court evaluates police conduct relating to an arrest its guideline is “good faith and probable cause.”